

Hollowell Patent Group PLLC

www.hollowellpatent.com

May 2, 2020

Barbara Blair
Director of Operations
Middleton, Sullivan and Wiley

Dear Ms. Blair:

This letter sets out the terms on which our firm will represent Middleton, Sullivan and Wiley in a freedom-to-operate analysis, and it becomes our agreement when you countersign it and return a copy to me. I have written it plainly and at some length, because an engagement runs more smoothly when both sides have read the same description of it before the work begins, and because a freedom-to-operate opinion is worth only as much as the care taken to define what it does and does not cover. Please read it against your own understanding of the matter, and tell me before you sign if any part of it does not match what you expect of us.

The Analysis We Will Perform

The engagement is a freedom-to-operate analysis directed at the products and features that Middleton, Sullivan and Wiley has identified to us, and its purpose is to assess the risk that making, using, offering, or selling those products in the United States would infringe patents held by others. We will identify the third-party patents and published applications relevant to the identified subject matter, read their claims against the products as you have described them, and give you our assessment of the risk each presents together with the options that assessment leaves open to you. Where a claim is close enough that reasonable counsel could differ on it, we will say so rather than resolve the question more firmly than the record supports.

What this analysis is not deserves to be stated with equal care. It is an opinion on the patents we identify and the product descriptions you furnish, current as of the date we deliver it; it is not a guarantee that no patent exists which our searches did not surface, and it is not a validity study or a formal opinion of counsel unless we later agree in writing to prepare one. If the products change after we begin, or if you ask us to extend the analysis to markets outside the United States, we will scope and quote that additional work separately before we take it on, so that nothing is added to the engagement without your agreement to it.

Who Will Do the Work

Heather Munoz, a partner in our prosecution group, will lead the analysis and is responsible for the conclusions we deliver and for the written opinion that carries them. She reviews work of this kind claim by claim and patent family by patent family, and she is the person who will sign the analysis and answer for it.

Richard Henderson and Kelly Snyder, both patent agents in the same group, will carry the searching and the technical reading on which the analysis rests. Richard Henderson will run the searches and prepare the claim charts, Kelly Snyder will maintain the reference set and keep the work anchored to the docket, and both will bring anything that touches infringement or validity to Heather Munoz rather than resolve it on their own. You will deal with a small and consistent team, and the people who do the work are the people whose names will be on it.

Fee and Payment

Our fee for this analysis is \$113,500, fixed at the outset rather than billed against hourly time, so that you can put a question to us without watching a clock and so that our attention stays on the work instead of on how long it takes. The fee covers the searching, the analysis, and one written freedom-to-operate opinion, together with the ordinary correspondence and calls that go with them; it does not cover work we agree to add later, such as an infringement or validity opinion on a particular patent, litigation support, or an extension to foreign markets, each of which we would quote before beginning. We will bill the fee in installments as the work proceeds, and invoices are due within thirty days of the date they are sent.

Term and Ending the Engagement

The engagement begins on May 12, 2020 and runs approximately nine months, which is the period on which we have planned the searching and the analysis, though we will tell you early if the work turns out to need more time or less. Either of us may end the engagement on written notice. If you end it, you owe the fee earned to that point together with any costs we have incurred and nothing beyond that; if we end it, which we would do only for a reason our professional obligations require, we will return any part of the fee that covers work we have not performed and will help you move the matter to other counsel without avoidable disruption.

Confidentiality

We will treat the product descriptions, the technical materials you provide, and the fact and content of this engagement as confidential, and we will use what you tell us only to perform the work you have retained us for. Our analysis and the

communications surrounding it are intended to be protected by the attorney-client privilege and the work-product doctrine, and we ask that you keep them within the group at Middleton, Sullivan and Wiley that needs them, because a privileged analysis circulated too widely can lose the protection that makes it safe to write candidly.

Limitation of Liability

We will perform this engagement with the care and skill our profession expects, and our assessment will reflect our best professional judgment on the record before us. We cannot warrant a particular outcome, because a freedom-to-operate opinion turns on patents that others hold and on how a court might one day read them, and those are matters no counsel controls. Our liability to you arising out of this engagement is limited to the amount of the fee you actually pay us for it, except where the law does not permit that limit, and neither of us will be liable to the other for indirect or consequential losses.

Governing Law

This letter is the entire agreement between us on this engagement and supersedes anything discussed or drafted before it, and it may be changed only in a writing that we both sign. It is governed by the law of the state in which our firm maintains its principal office, and any dispute we cannot resolve between ourselves will be heard by the courts sitting in that state, whose jurisdiction we each accept.

Confirming the Engagement

If this letter reflects our agreement, please sign and date the enclosed copy and return it to me, and we will open the matter and begin the searches on the date set out above. If you would rather talk any part of it through first, tell me and I will make the time this week.

Very truly yours,

Mary Bradley

Managing Partner

Date: May 2, 2020

Barbara Blair

Director of Operations, Middleton, Sullivan and Wiley

Date: May 2, 2020